

HOW WELL ARE WE DOING: HAS THE SEXUAL HARASSMENT POLICY IN CEDA DEBATE WORKED?

Pamela L. Stepp and Beth Gardner

Brooks and Perot (1991) conservatively estimate that approximately half of all women in the U.S. will be sexually harassed during their working and academic careers. Although research about sexual harassment began about twenty years ago, real interest in the United States did not begin until 1991 with the Clarence Thomas and Anita Hill hearings and the Navy "Tailhook" scandal (Dziech & Hawkins, 1998). The sudden awareness of sexual harassment brought about by these events has been compared to the awareness of racism provoked by the Civil Rights Movement in the 1960's.

Fitzgerald and Shullman (1993) emphasize that sexual harassment is a serious problem beyond the workplace environment. In their study of 2000 academic women nearly half of the women perceived that they had been sexually harassed (Fitzgerald et al., 1988). Sexual harassment continues to receive attention from researchers and the subject is of particular interest to communication scholars (Clair, Chapman, & Kunkel, 1996). Many communication scholars have conducted applied research on sexual harassment calling for solutions (Berryman-Fink, 1993; Booth-Butterfield, 1989; Keyton, 1996) to bring an end to sexual harassment.

The intercollegiate debate community began to pay attention to reports of sexual harassment incidents in the nineties as well. Research conducted by Stepp, Simerly, and Logue (1994) in CEDA debate (Cross Examination Debate Association) and Szwapa (1994) in NDT (National Debate Tournament), indicated high levels of sexual harassment. As a response to the startling number of sexual harassment incidents, particularly to women coaches and debaters, the CEDA organization adopted a sexual harassment policy in the spring of 1994.

Pamela L. Stepp (Ph.D. Cornell University) is the Managing Director of the Center for Advanced Human Resource Studies in the Industrial Labor Relations School at Cornell University. Beth Gardner (B.A. Allegany College) is a graduate student in Natural Resources at Cornell University.

As we move into the twenty-first century it is an opportune time to study the effectiveness of the six-year-old sexual harassment policy in CEDA debate. It is necessary to review procedures, policies, and educational efforts because new debaters, new coaches, and new directors arrive each year. Assumptions often are made that newcomers have knowledge and understanding of policies and procedures that exist for their protection. Dziech and Hawkins (1998) insist that "How well are we doing?" must be asked continuously, and organizations should be willing to admit failure as they struggle to address the needs of diverse student populations. The purpose of this research is to review the literature about sexual harassment in the debate community during the past ten years, to present new data about incidents of sexual harassment, and to answer the question "how well are we doing?"

Review of the Literature

When Szwapa (1994) studied sexual harassment in NDT debate, previous research suggested 30% of the undergraduate population would experience some form of sexual harassment (Dzeich & Weiner, 1984; Fitzgerald et al., 1988). In comparison Szwapa (1994) found gender harassment and seductive behavior were experienced by over 80% of women NDT debaters, indicating very high percentages of harassment when compared to the general student population. Additionally, over 30% of the female debaters said they had been in a position where a coach or debater made forceful attempts to touch, kiss or grab (sexual imposition); over 46% of the women noted they had been in a situation where a coach or debater made unwanted attempts to touch or fondle (sexual imposition). The incidence rates for these severe types of sexual harassment were at or above the level projected for the general undergraduate population, which suggested the need for further study.

After replicating Szwapa's study in the CEDA debate community, Stepp et al. (1994) found similar results. Gender harassment, seductive behavior, and sexual imposition were not experienced as frequently as in the NDT community, but the percentages were all higher than in the general college student population (for a summary of the findings of the Stepp et al. 1994 study, see Table 1). Stepp et al. (1994) also surveyed male coaches and debaters, reporting that men also experience sexual harassment but report it less frequently than women. The high incidences of reported sexual harassment in these two studies laid the groundwork for needed sexual harassment policies in intercollegiate debate. In the spring of

1994 the CEDA debate community adopted a sexual harassment policy with guidelines that mandated the placement of a sexual harassment officer at the national CEDA debate tournament held each spring (see appendix, statement on sexual discrimination).

There is increasing interest in sexual harassment research in the debate community. Some forensics scholars who addressed gender inequity in debate referred to sexual harassment as a barrier for both female participants and coaches (Bartanen, 1995; Greenstreet, 1997; Greenstreet, Joeckel, Martin, & Piercy, 1997; Rogers, 1997; Wilkins & Hobbs, 1997). A recent sexual harassment study about female barriers (Jones & Treadaway, 2000) predicted that sexual harassment of women and overall lack of support for women in the debate activity reduces women debaters' self-esteem. Women reported more sexual harassment incidents than men and there were negative correlations with social support in various situations. Jones & Treadaway (2000) concluded that little social support, lowered self-esteem, and sexual harassment might be driving women away from the activity.

Over six hundred students from four national forensics organizations were recently surveyed to assess understanding and experiences of sexual harassment (Stepp, 2001). Results indicated that sexual harassment is widespread in forensics activities. Women are harassed more than men, and women in intercollegiate debate are harassed more than women in individual speaking events. To date, the Cross Examination Debate Association is the only debate organization to have developed a sexual harassment policy, but there is no known research about the impact of the CEDA sexual harassment policy. This is not unusual as research on the impact of organizational procedures and policies is notably missing in the body of sexual harassment literature (Fitzgerald & Shullman, 1993; Gruber, 1998).

Policies and Education for Ending Harassment. Sexual harassment policies have been known to reduce the prevalence of sexual harassment incidents on college campuses. After the University of Massachusetts at Amherst established a sexual harassment policy in 1982, female undergraduate students' reports of sexual harassment by faculty and staff declined most sharply from 1983 to 1986, the period immediately subsequent to implementation of the university's policy (Williams, Lam, & Shively, 1992). Robertson, Dyer, and Campbell (1988) found that affirmative action officers at a university with a new sexual harassment policy believed that even though their policy did not decrease complaints they felt that the grievance procedures had reduced incidents of sexual harassment. Robertson et al. (1988) also argue that the significantly greater number of complaints in institutions with sexual

harassment policies and grievance procedures than in institutions without them is an indication of a heightened level of awareness of sexual harassment as a problem.

Sexual harassment policies also serve to increase student awareness of the illegality of sexual harassment. Williams et al. (1992) found awareness of the illegality of sexual harassment increased from 86.7% immediately after the implementation of a sexual harassment policy to 94.3% six years later. Furthermore, the proportion of female undergraduate students who said they would be likely to notify the police of sexual harassment on campus more than doubled after the implementation of the policy, from 15% in 1986 to 37% in 1989 (Williams et al., 1992).

Schneider (1987) claimed the very existence of sexual harassment policies and procedures seems to have positive effects. By demonstrating to faculty and students the willingness of the administration to take this issue seriously, the policies offer legitimacy to those students who may need to complain and offer both informal and formal grievance mechanisms. They also provide the basis for educational programs targeting specific campus constituencies and offer a measure of definitional clarity (Schneider, 1987).

Because of variation in organizational structure and cultures one universal policy will not feasibly work for a wide gamut of organizations. Michelle Paludi, a sexual harassment consultant and author of *Ivory Power* says:

An adequate program for dealing with sexual harassment on college campuses requires more than a general policy against the behavior. It requires the efforts and support of the campus administration, faculty, employees, and students, and the continual training of all the members of the campus community, as well as procedure that encourages (complaints), not merely allows complaints. (1998, p. xi)

Each organization needs to be familiar with its culture and its members so it is able to predict and identify where, when, and how harassment incidents arise, and how to prevent and communicate about these incidents. Gutek (1997) has outlined several goals of a responsible sexual harassment policy: 1) to take a stand on sexual harassment, that is, to show the organization cares; 2) to make the stance public knowledge; 3) to discourage employees from engaging in harassing behavior; 4) to encourage targets of harassment to come forward and inform management; 5) to educate people about sexual harassment; 6) to provide guidelines for dealing with allegations of harassment; and 7) to be able to defend the organization in the event that it is taken to court in a sexual harassment case.

Research Question. CEDA is the only debate organization with a sexual harassment policy. It was implemented in 1994 and remains in effect today. Six years is a considerable amount of time to evaluate its impact. Therefore, data was collected in the 1999 CEDA community to explore incidents of sexual harassment and to make comparisons to the incidences of sexual harassment found by Stepp et al. (1994) before the policy had been implemented. Comparison of these two studies allow us to answer the question:

Has sexual harassment in the CEDA debate community declined since implementation of a sexual harassment policy?

Methodology

Sample. Respondents came from participants at the National CEDA Debate Tournament held at Southern Illinois University in March 1999. The sample consisted of 249 coaches and competitors including 108 male debaters, 43 male coaches, 74 female debaters, and 24 female coaches.

Procedure. Permission to conduct the research was granted by the CEDA research committee. The surveys were stapled to a ballot and distributed to students by a judge before or after a designated round of competition at the National CEDA Tournament. This method ensured the majority of both competitors and judges at the tournament were invited to participate in the study. Participation in the study was voluntary and instructions on each survey directed participants to place their survey in a provided envelope, seal it and either personally drop into a survey box or give back to their judge. There was a 54% return rate.

Instrument. The survey was based on the Sexual Experiences Questionnaire (SEQ) developed by Fitzgerald et al. (1988). A shortened version of the SEQ that Szwapa (1994) adjusted to the debate context was selected for this study. Szwapa's (1994) survey version was also used in Stepp et al. (1994). This version of the SEQ included eleven closed-ended questions based on the original 28 SEQ items. The eleven closed-ended questions reflected the five levels of harassment from the original instrument (Fitzgerald et al., 1988), including gender harassment: sexist behavior and remarks; seductive behavior: sexual advances that are sanction-free but offensive and inappropriate; sexual bribery: solicitations for sexual behavior by rewards; sexual coercion: threats of punishment for sexual activity; and sexual imposition: forced or unwanted touching, fondling, grabbing.

The modified version contained several questions to more accurately represent behavior in the debate community (Szwapa, 1994). Each participant was asked to circle the response

that described his or her own experience. Options included (1) Never; (2) Once; and (3) More Than Once. A reliability test (Cronbach's α) yielded a coefficient of .74 for the eleven items used in this study.

To examine the prevalence of sexual harassment in the debate community, responses from the categories of "once" and "more than once" were combined into one category representing the total number of persons experiencing the actions indicated in the individual questions. T-tests were conducted on the average responses of each question to assess overall differences between the Stepp et al. (1994) and the 1999 study. For further analysis, each respondent was classified by gender (male or female), status (either coach or debater), and year in which the survey was conducted (1994 or 1999). Logistic regression was used with each question to examine whether the effects of gender, status, and year were significant (Equation 1).

$$(1) \text{ Response} = \text{Gender} + \text{Status} + \text{Year}$$

For the effect of Gender, those participants who were male were assigned the value 1, and females were assigned the value 0. The effect of Status was defined by coach = 1 and debater = 0 and the effect of Year was defined by the year in which the survey was conducted with 1994 = 1 and 1999 = 0. Additionally, a standard multiple comparisons with a Bonferroni correction was computed to see if overall averages had increased.

Results

The research question was posed to investigate the frequency of sexual harassment after implementation of the CEDA sexual harassment policy in 1994. Comparisons with the prevalence of sexual harassment found by Stepp et al. (1994) were made using the same modified Szwapa (1994) version of the SEQ questionnaire administered at one national tournament in 1999. Although the previous study (Stepp et al., 1994) sampled debaters and coaches from two tournaments in 1993 (the Great Salt Lake Tournament held in Utah and the Saint Louis University tournament) the data appear to be comparable (see Table 1).

The national tournament sampled in 1999 is open to any participant and is well attended by schools throughout the country, just like the two tournaments sampled in 1993, thus the survey results should be analogous. Comparisons were not made to the Szwapa (1994) study because it was a pilot study with a small sample that did not include males, nor did it

Table 1.
Comparison of the Prevalence (%)¹ of Sexual Harassment between 1994 and 1999

Studies:	Stepp et al. (1994)				Current Study (1999)			
Gender and Position: (total N)	Male Debater (160)	Male Coach (53)	Female Debater (85)	Female Coach (17)	Male Debater (108)	Male Coach (43)	Female Debater (74)	Female Coach (17)
<u>Types of Sexual Harassment</u>								
Level 1 Gender Harassment:								
1. Suggestive stories or offensive jokes	75.0	90.6	63.5	88.2	83.3	92.9	76.7	94.1
2. Treated differently due to gender	25.0	30.2	64.7	64.7	32.7	39.5	78.1	94.1
3. Sexist remarks	21.9	32.1	52.9	70.6	27.8	48.8	60.3	94.1
Level 2 Seductive Behavior:								
4. Discussion of personal or sexual matters	30.0	47.2	40.0	70.6	36.7	54.8	50.0	70.6
5. Unwanted seductive behavior	18.8	24.5	34.1	41.2	17.0	27.9	44.6	50.0
Level 3 Sexual Bribery:								
6. Bribed with some rewards	1.9	11.3	11.8	11.8	1.9	7.0	13.5	11.8
7. Unwanted sexual behavior due to rewards	0	3.8	0	0	0.9	2.3	2.7	11.8
Level 4 Sexual Coercion:								
8. Negative consequences for sexual non-cooperation	0.6	11.3	9.4	11.8	0.9	4.7	5.5	11.8
9. Threats for sexual non-cooperation	0.6	5.7	3.5	11.8	0	2.3	1.4	11.8
Level 5 Sexual Imposition:								
10. Forceful attempts to touch, kiss, or grab the subject	3.8	9.4	17.7	23.5	3.7	11.6	19.2	23.5
11. Unwanted attempt to touch or fondle the subject	5.0	18.9	16.5	29.4	4.7	9.3	24.7	23.5

¹ Percentage of subjects who experienced each sexual harassment type once or more than once.

separate coaches from students, both of which are important components in assessing the sexual harassment policy.

When compared with the data collected before the implementation of the sexual harassment policy (Stepp et al., 1994), the overall prevalence of sexual harassment experiences has significantly increased ($p = .0050$) and is still greater for females than males in the debate community ($p = .0114$). For the logistic regression analysis, all interaction terms were examined and were not found to be statistically significant. Therefore, they were dropped from the model. In Level 1, the area of Gender Harassment, all three questions resulted in a significant effect of year ($p = .0073$, $p = .0047$, $p = .0239$). Thus, there was a significant increase in the percent of respondents experiencing gender harassment in 1999 (61.4%) than before the policy was implemented in 1994 (49.5%). Coaches (72.3%) were more likely than debaters (56%) to experience an incident of harassment specifically in the areas of suggestive stories or offensive jokes and sexist remarks ($p < .0001$ and $p = .0001$, respectively). Females (77.5%) experienced differential treatment due to gender and sexist remarks more often than males (29.0%, $p < .0001$). However, males (82.0%) were more likely to hear suggestive stories or offensive jokes ($p = .6400$).

In Level 2, Seductive Behavior, gender and status were found to have a significant effect on the probability of experiencing harassment of this nature. Females (45.6%) were more likely than males (34.4%) to experience incidents of discussion of personal or sexual matters and unwanted seductive behavior ($p = .0015$, $p < .0001$). Coaches (44.9%) also were more likely than debaters (31.5%) to experience such situations ($p < .0001$, $p = .0496$). There was no significant increase or decrease in the experience of seductive behavior for the different survey years.

The results for Level 3, Sexual Bribery, indicate that females (12.5%) were more likely than males (3.8%) to experience being bribed with some rewards ($p = .0001$) in exchange for sex. Coaches (10.2%) had a higher probability than debaters (5.8%) to experience being bribed with some reward ($p = .0400$). In the case of unwanted sexual behavior due to rewards, the prevalence was similar across all the groups and both years, thus there were no significant effects due to sex, status, or year.

Level 4, Sexual Coercion, contained the only area where the percent of incidents significantly decreased after the sexual harassment policy was implemented. The 1999 survey indicated that the experiences of negative consequences for sexual non-cooperation (2.4%) decreased from the 1994 survey (5.3%, $p = .0397$). Females (6.5%) and coaches

(7.3%) were more likely to have experiences of negative consequences for sexual non-cooperation ($p = .0142$, $p = .0133$, respectively). Females (4.5%) and coaches (6.6%) also were more likely to experience threats for sexual non-cooperation ($p = .0108$, $p = .0006$).

In level 5, Sexual Imposition, females (19.5%) were more likely than males (6.5%) to experience forceful attempts to touch, kiss, or grab and unwanted attempts to touch or fondle ($p < .0001$, $p = .0001$). Coaches (16.8%) were more likely than debaters (10.5%) to experience these unwanted attempts as well ($p = .0200$). There was no significant difference in the percent of respondents experiencing sexual imposition between the two studies.

Overall, sexual harassment experiences have increased since the Stepp et al. (1994) study in every area except for sexual coercion. As of 1999, there has been a decrease in incidents involving negative consequences for sexual non-cooperation. Additionally, in every area except two, females were more likely than males to experience sexual harassment. Males were more likely to experience suggestive stories or offensive jokes, and there was no gender difference in experiences of unwanted sexual behavior due to rewards.

Discussion

Our study suggests the implementation of the CEDA sexual harassment policy has had little overall effect on reducing sexual harassment in the CEDA intercollegiate debate community. Although there were fewer reported incidents of perceived harassment by sexual coercion, this is the least common form of sexual harassment (Donohue & O'Hare, 1998). The courts have recognized sexual coercion as *quid pro quo* harassment that is offering work related benefits for sexual acts or punishment for non-cooperation. Increased legislation and fear of legal recriminations as well as the implementation of the CEDA policy may have reduced perceived incidents of sexual coercion. However, more females than males expressed being bribed for some reward, so *quid pro quo* harassment is still an issue in intercollegiate debate.

Based on the results of this study, unwanted sexual actions that interfere with a person's ability to work or that create a hostile working environment appear to be on the increase. While hostile working environment behaviors are not as easily recognized as the *quid pro quo* behaviors, they produce an intimidating and often intolerable working environment for women. (Fitzgerald et al., 1988). The increased percentage of respondents experiencing gender harassment in this study indicates there may be a hostile environment in debate particularly for women. More females than males perceived differential treatment due to

gender and experienced sexist remarks, incidents of discussion of personal or sexual matters and unwanted seductive behavior.

While the unequivocal results of this study show the sexual harassment problem has worsened, dissimilarities in definitions of sexual harassment may make these results difficult to interpret. When women in organizations with sexual harassment policies experience as much sexual harassment as women in organizations without policies the results could stem from different concepts of harassment or because policies are ineffective (Gruber, 1998).

Although this study demonstrates a significant increase in perceived incidents of sexual harassment since 1993, our analysis does not allow us to predict direct causal links to organizational procedures and policies. Other factors may have increased sexual harassment as well. In 1997 the NDT debate organization began sharing the same debate topic as CEDA. As a result of that initiative debaters and coaches from both organizations cross over at each other's tournaments. The NDT organization includes notably more male debaters and male coaches. The 1999 Report on the 53rd National Debate Tournament indicated that 27 females and 123 males competed. Gutek (1985) emphasizes that the organizational factors of skewed gender ratios such as those that exist in debate (Stepp, 1997) and an atmosphere where sexual jokes are common often create and support harassment of women. Additionally, as in debate, in organizations that include mostly male supervisors there is more sexual harassment of women because the male supervisor influences the climate in the organization (Gutek, 1985).

A clear distinction between NDT and CEDA is that NDT does not have a sexual harassment policy. In organizations where officials have not taken a proactive stand on sexual harassment members may perceive the organization as tolerant of sexual harassment (Hulin, Fitzgerald, & Drascow, 1996).

Despite the possible influence of various factors, research indicates sexual harassment policies and procedures do work. Both proactive and information methods help prevent sexual harassment, particularly, they reduce sexual comments about women (Gruber, 1998). However, Gruber and Smith (1995) stress policies and knowledge about complaint procedures and training are all needed to help women prevent unwanted sexual actions. Research suggests sexual harassment is not prevented unless there is noticeable effort to combat the problem (Gruber, 1998).

This study emphasizes the need for further research about sexual harassment in intercollegiate debate. As a caution concerning survey research these results should not be

generalized to the debate community. The survey method influences subject matter and those who have been sexually harassed may have been more apt to respond. However, the survey provided valuable data about the incidence, prevalence, and type of sexual harassment and allowed comparison of the 1999 results to the data collected in 1993. The comparison results should lead us to explore why the CEDA sexual harassment policy appears to have had little impact?

CEDA has met Gutek's (1988) first goal for a responsible sexual harassment policy. CEDA has shown that the organization cares by implementing a policy. Future research is needed to investigate whether Gutek's remaining six goals have been met. Although the CEDA policy is open to the public we do not know if debaters and coaches know about the CEDA sexual harassment policy and procedures. There have been forums held at the national CEDA tournament about sexual harassment in the past but they are sporadic.

Little is known about existing sexual harassment training to discourage harassment and resources to provide encouragement for those who have been harassed to come forward to inform leaders. CEDA has advertised that the Sexual Harassment Officer is on duty at its National tournament. There are several known situations where students did come forward with sexual harassment complaints at the National CEDA tournament. We do not know if any of those students knew the guidelines for dealing with allegations of harassment that are spelled out in the CEDA policy prior to the National tournament, and we do not know how many students know that a sexual harassment policy is in place at the National tournament. Lastly, it is not clear if the CEDA organization is able to defend itself if it is taken to court for a sexual harassment case as suggested by Gutek (1988).

Pryor, LaVite, and Stoller (1994) argue that clear, highly advertised, proactive stands against sexual harassment can change perceptions and change organizational norms. The CEDA organization may find yearly awareness programs and general publicity may reduce the incidence of sexual harassment. All of the forensics organizations should work together to continue sexual harassment research and become proactive through implementation of effective policies.

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Appendix

Cross Examination Debate Association: Statement on Sexual Discrimination

Preamble: The Cross Examination Debate Association is dedicated to the principle of free expression and exploration of ideas in an atmosphere of civility and mutual respect. Related to this principle is the belief that all members of this community will have access to CEDA debate activities without regard to race, creed, age, sex, national origin, sexual or affectional preference, or non-disqualifying handicap. These principles should guide the behavior of the organization's members and participants.

Section 1: The Nature of the Academic Debate Community

It is the nature of the academic debate community to provide a forum for the robust expression, criticism and discussion (and for the tolerance) of the widest range of opinions. It does not provide a license for bigotry in the form of demeaning, discriminatory speech actions and it does not tolerate sexual harassment. Any member of this community who is threatened by discrimination or harassment is liable to be harmed in mind, body or performance and is denied the guarantee of an equal opportunity to work, learn and grow inherent in the above principles. In the debate community, the presentation of a reasoned or evidenced claim about a societal group that offends members of that group is to be distinguished from a gratuitous denigrating claim about, or addressed to, an individual or group such as those enumerated above. The former is bona fide academic behavior while the latter may demean, degrade or victimize in a discriminatory manner and, if so, undermines the above principles. Sexual harassment is a form of discrimination and consists of verbal or physical conduct of a sexual nature, imposed on the basis of sex, that has the effect of denying or limiting one's right to participate in the activity, or creates a hostile, intimidating or offensive environment that places the victim in an untenable situation and/or diminishes the victim's opportunity to participate fairly. Sexual conduct can be discriminatory and harassing when the nature of the interaction is unwelcome, or when a pattern of behavior that is offensive to a "reasonable woman" exists. Discrimination or harassment by one person against another is particularly abhorrent when the first person is in a position of power with respect to the second. At the same time, it should be understood that false accusations, whether malicious or fanciful, have serious far-reaching effects. A deliberate false accusation will be regarded as a very serious matter, as will threats of retaliation by the accused against individuals who have filed complaints of discrimination or harassment. In

formulating a policy on discrimination and sexual harassment, CEDA hopes to eliminate a rather narrow range of behaviors and actions from this activity. But, we cannot guarantee that the environment will be comfortable for all members of the community all the time. Often, arguments in debate are unsettling and disturbing. When one's ideas are under attack the experience can be both painful and highly educational. The simple fact that a situation is uncomfortable does not automatically make it discriminatory or harassing. In this regard, it is central to debate that teachers and students should be able to take controversial positions without fear, in accordance with the principles of academic freedom. Being able to determine when something is outside the bounds of academic legitimate debate strategy or argumentation, or simple civility and good taste comes with education, experience and social maturity. The following policy is designed to foster education and provide grievance procedures for discrimination and sexual harassment complaints and help reestablish a working and learning environment free of harassment.

Section 2: Methods of Dealing with Harassment and Discrimination

A. Direct, Personal Strategies—the Preferred Model

1. You can sometimes stop harassment by taking direct action. Past experience within organizations and academic institutions indicates that many grievances can be resolved without resorting to a formal investigation. Therefore, this section outlines a series of steps that might be followed in an attempt to reach a satisfactory resolution when an individual chooses not to follow formal grievance procedures immediately.
 - a. Say “No” to the harasser. Ignoring the situation will not make it go away.
 - b. Ask the judge to intervene. Sexual harassment is a case when judge intervention may be required to comply with the letter of the law.
 - c. Write a note to the harasser. Describe the incident and how it made you feel. State that you want the harassment to stop. Keep a copy.
 - d. Keep a record of what happened, when it happened and who might have witnessed the event.
 - e. Ask another person (coach, friend, trusted colleague, the judge in the round) to intervene in your behalf—make good use of the fact that we are people trained in or learning about argument and conflict resolution. Talk out as many cases as possible.

2. In the event that a personal approach is inappropriate or unlikely to produce change, resort to filing a formal complaint as outlined below.

B. Strategies: Administrative Structure and Duties

1. The President of the Cross Examination Debate Association will appoint a Sexual Harassment Officer (SHO), preferably a woman, who will chair the Committee on Discrimination and Sexual Harassment (CDSH). The CDSH will consist of no fewer than three and no more than five active CEDA members. The CDSH will be provided with adequate and appropriate training.
2. The names of the SHO and CDSH members will be widely published: listed in newsletters, included in the national tournament invitation and made known in other appropriate ways.
3. The SHO and CDSH members shall be available to consult with complainants within the procedure as outlined in this procedure. (It is particularly important that the SHO be available at the National Tournament.)
4. The CDSH shall facilitate and review an educational program annually, informing members of the CEDA debate community about the definitions and interpretations of discrimination and sexual harassment and about procedures for initiating complaints.

C. Procedures in Cases of Discrimination or Sexual Harassment (these rules apply most directly to the National Tournament but might be adapted to fit other forensic related events):

1. Complaints may be brought by any member of the CEDA community. Complaints will not be pursued when more than one year has elapsed following the alleged incident.
2. At any point during the proceedings any of the parties involved may choose to be accompanied by an adviser. All parties are free to consult with an attorney, if they choose to do so, but the investigation and hearing procedure is not a legal proceeding and attorneys may not be present or participate.
3. At all times throughout the procedures outlined below confidentiality will be preserved carefully whenever appropriate.
4. All written records pertaining to the case shall be kept permanently in a confidential file held by the CEDA Executive Secretary.
5. Procedures

- a. The complainant submits a detailed complaint, in writing to the SHO.
- b. Once the complaint has been filed and accepted by the SHO, the complainant shall be considered solely as a witness in an investigation by the CDSH.
- c. As expeditiously as possible, the SHO and CDSH (or appropriate replacement) will investigate, meet with all parties involved and ensure that the accused has an opportunity to see and respond to all statements made against him or her.
- d. If the CDSH finds that no discrimination or harassment has taken place, the matter will stop at this point and the immediate parties shall receive notification that the case will go no further. Copies of this report and other relevant information will be kept on file permanently.
- e. If the CDSH is convinced that discrimination or harassment has occurred, they will prepare a complete report including their findings, the statements of the accused party as well as the other witnesses and their conclusions about the nature and seriousness of the event that has taken place.
- f. This report shall be submitted to the President, who shall review the evidence and, if necessary, request additional information.
- g. In consultation with the CDSH, the President shall determine an appropriate sanction. Depending on the severity of the event, this sanction may include any of the following (this should not be viewed as an exhaustive listing of all possible sanctions, just the most likely): oral reprimand; written reprimands to be sent to directors of forensics and/or Deans of Faculty or Students and/or College or University Presidents; removal from future participation at the National Tournament (either competing or judging); removal of CEDA points; or suspension of membership in CEDA.

D. Appeals Procedures

1. If the individual(s) found guilty of discrimination or harassment wishes to appeal the President's decision, he/she or they may request that a hearing be held to review the decision. Ordinarily, such an appeal will be possible only if

the individual(s) involved can present new evidence not previously considered or evidence of procedural violations during the formal procedures.

2. The Appeals Board will consist of those available members of the Executive Committee, not previously involved in the formal hearing and not having conflicts of interest. Replacements may need to be appointed to produce a committee of at least five members.
3. The Appeals Board shall review the written evidence in the case, consider new evidence provided to them, interview witnesses as they deem necessary and shall consider the proposed disciplinary action in relation to the evidence provided.
4. The findings and recommendations from the Appeals Board are considered final.
5. All reports are to be filed permanently with the Executive Secretary

Section 3: Epilogue

Resources used in preparing this document include *Sexual Harassment in Higher Education: Concepts and Issues*, NEA, 1992; *Sexual Harassment: It's Not Academic*, Dept. of Education, 1984; *Sexual Harassment*, Cornell University, 1990; *Statement on Discrimination and Academic Freedom*, Carleton College, 1990; and *Whitman College Staff Handbook*, 1992.

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